Procedural Requirements:

The application "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc. §473, subd. (b).) But this requirement is not jurisdictional, and substantial compliance may suffice. (*Carmel, Ltd. V. Tavoussi* (2009) 175 CA4th 393, 403 [substantial compliance found where counsel offered proposed answer at motion hearing rather than serving it with moving papers.]; *Austin v. Los Angeles Unified School Dist.* (2016) 244 CA4th 918, 933 [plaintiff substantially complied with the "attached-pleading requirement" by offering facts and legal arguments in her motion.].)

Given that, ordinarily, there is not a pleading to be filed by plaintiff at this stage of the proceedings; plaintiff is excused from this requirement. Nonetheless, the court appreciates plaintiff's attempt to comply with this requirement by attaching copies of the default packages against defendants. However, plaintiff will need to resubmit its default packages separately, if it seeks default judgment against defendants.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: SMC on August 31, 2026.
(Judge's initials) (Date)

(36)

<u>Tentative Ruling</u>

Re: ***Martinez v. Gonzalez***
Superior Court Case No. 25CECG00489

Hearing Date: September 1, 2026 (Dept. 403)

Motion: by Plaintiff for Relief from Dismissal

Tentative Ruling:

To deny the motion as premature.

A hearing on the court's own motion for reconsideration of the Case Management Conference Minutes/Order to Show Cause, filed on October 22, 2025, is set for Wednesday, October 7, 2026, at 3:30 p.m. in Department 403, since the October 22, 2025 order is unsigned and the court did not properly serve the May 30, 2025 order continuing the case management conference to plaintiff's counsel at their address of record. (Code Civ. Proc., § 1008; *Le Francois v. Goel* (2005) 35 Cal.4th 1094; *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573.) Any opposition must be filed and served on all appearing parties at least nine court days prior the hearing, and any reply papers at least five court days before the hearing.

Explanation:

Statutory Relief

Code of Civil Procedure section 473, subdivision (b), provides in pertinent part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (*Ibid*.)

The six-month time period for filing a motion under Code of Civil Procedure section 473, subdivision (b), is jurisdictional, and the court is without power to grant relief after expiration of the period. (*Solot v. Linch* (1956) 46 Cal.2d 99, 105–106; *Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 [finding trial court was without jurisdiction to grant motion to vacate, holding that "[t]he six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed"]; *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318["[t]he six-month outside time limit for granting relief is jurisdictional and the court may not consider any motion made after that period has elapsed"]; *Northridge Financial Corp. v. Hamblin* (1975) 48 Cal.App.3d 819, 826 [affirming denial of motion to vacate under "jurisdictional time period of section 473"]; *Thompson v. Vallembois* (1963) 216 Cal.App.2d 21, 24 [section 473 motion made more than six months after entry of default "was made too late, and the trial court simply lacked jurisdiction to act under it"].)

"[T]he six-month limitations periods of the mandatory and the discretionary relief provisions of section 473(b) mean the longer of six calendar months or 182 days." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 58.)

Here, this court entered the order dismissing plaintiff's action on October 22, 2025. (Stone Decl., ¶ 4.) The instant motion was filed on April 23, 2026. Without providing any calculation of time, plaintiff merely concludes that the motion is timely. The court takes judicial notice that April 23, 2026 was 183 days after October 22, 2025, computing the number of days in the time period by excluding the first day and including the last day, which was not a holiday. (Evid. Code, §§ 452, subd. (h), 459, subd. (a); Code Civ. Proc., §§ 12, 12a.) The court further judicially notices that April 23, 2026 was six months and one day after October 22, 2025. (Evid. Code, § 452, subd. (h); Code of Civil Procedure section 17(f) [" 'month' means a calendar month"].) Therefore, the motion is untimely under either calculation, and the court is without power to grant relief pursuant to Code of Civil Procedure, section 473, subdivision (b).

Equitable Relief

Nonetheless, the 6-month limit does not apply where relief is sought on equitable grounds, and a court may treat a motion under Code of Civil Procedure, section 473, subdivision (b) as a motion for equitable relief. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981; *Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 47.)

Where relief is sought more than six months after the entry of dismissal, the motion is directed to the court's inherent equitable power to set aside a judgment on the ground of extrinsic fraud or mistake. (*Olivera v. Grace* (1942) 19 Cal.2d 570, 576-578; *Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300; *Bae v. T.D. Service Co.* (2016) 245 Cal.App.4th 89, 97.) The terms "extrinsic fraud or mistake" are given a broad interpretation and cover almost any circumstance by which a party has been deprived of a fair hearing. There need be no actual fraud or mistake in the strict sense. (*Marriage of Park* (1980) 27 Cal.3d 337, 342; *Sporn v. Home Depot USA, Inc.*, *supra,* 126 Cal.App.4th at p. 1300 [requires evidence "that the papers were lost, stolen, forwarded to the wrong person or eaten by the dog"]; *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1233.) "The term 'extrinsic' refers to matters outside of the issues framed by the pleadings, or the issues adjudicated. [Citation.]" (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 738.)

With regard to extrinsic mistake in particular, the term is broadly applied to cover situations in which circumstances extrinsic to the litigation have cost a party a hearing on the merits. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) These are usually cases of excusable neglect by defendant or defendant's attorney in failing to appear and present a defense: "If such neglect results in an unjust judgment, without a fair adversary hearing, the basis for equitable relief is present, and is often called 'extrinsic mistake.'" (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471; *Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 47.) Relief will be denied, however, if the complaining party's negligence permitted the mistake to occur. (*Kulchar v. Kulchar, supra*, 1 Cal.3d at p. 473; *Manson, Iver & York v. Black*, *supra,* 176 Cal.App.4th at p. 47; see also Wilson v. Wilson (1942) 55 Cal.App.2d 421.)

The party seeking relief must show: "(1) a satisfactory excuse for not having discovered the facts prior to the entry of the judgment; and (2) diligence in seeking relief after discovery of the facts." (*Page v. Insurance Co. of North America* (1969) 3 Cal.App.3d 121, 129.)

In the present case, counsel, Keith Stone's two declarations indicate the failure to appear at the case management conference on October 22, 2025, was due to several factors as follows: (1) the court's order continuing the case management conference from June 12, 2025 to October 22, 2025 was inadvertently served to an incorrect address that was not counsel's address of record in this case (Stone Supp. Decl., ¶¶ 4-5 and Ex. A thereto); (2) the attorney primarily responsible for handling this matter, who is no longer employed by the firm, failed to properly calendar the October 22, 2025 case management conference in the firm's electronic case management software. (Stone Decl., ¶ 5.)

While plaintiff has shown a satisfactory excuse for not attending the October 22, 2025 case management conference, the motion lacks evidence to address whether plaintiff diligently sought relief after discovery of the facts. Mr. Stone's declaration admits that the October 22, 2025 order entering dismissal was served on his firm on October 23, 2025 (Stone Decl., ¶ 4), and yet, the instant motion for relief was not filed until April 23, 2025, six months following service of the order. Accordingly, without more, the court cannot grant the motion on the basis of the court's inherent equitable power.

Reconsideration

In *Le Francois v. Goel* (2005) 35 Cal.4th 1094, the California Supreme Court held that a trial court has inherent authority to reconsider "its prior interim rulings on its own motion." (*Id*., at p. 1105.) "[T]he trial court retains the inherent authority to change its decision at any time prior to the entry of judgment." (*Id*., at p. 1100.) The court has inherent power to correct its own errors when they are called to the court's attention by way of an improperly filed motion or by arguments on a related motion. (*Boschetti v. Pacific Bay Investments Inc.* (2019) 32 Cal.App.5th 1059, 1070 [the 10-day time frame in Code of Civil Procedure, section 1008 does not limit the court's ability to reconsider.].) "[I]n order to grant reconsideration on its own motion, the trial court must conclude that its earlier ruling was wrong, and change that ruling based on the evidence originally submitted." (*In re Marriage of Ankola* (2020) 53 Cal.App.5th 369, 383.)

"A written dismissal of an action shall be entered in the clerk's register and is effective for all purposes when so entered. [¶] *All dismissals ordered by the court shall be in the form of a written order signed by the court* and filed in the action and those orders when so filed shall constitute judgments and be effective for all purposes, and the clerk shall note those judgments in the register of actions in the case." (Code Civ. Proc., § 581d, emphasis added.) In other words, an order of dismissal is a judgment, and therefore, a motion for reconsideration does not lie after a dismissal. (*APRI Ins. Co. v. Sup.Ct. (Schatteman)* (1999) 76 Cal.App.4th 176, 181.)

However, "[a]n order that is not signed by the trial court does not qualify as a judgment of dismissal under [Code of Civil Procedure] section 581d." (*Powell v. County* *of Orange* (2011) 197 Cal.App.4th 1573, 1578; see also *Daniels v. Robbins* (2010) 182 Cal.App.4th 204, 229 ["[t]he order granting the anti-SLAPP motion did not qualify as a dismissal, as it was an unsigned minute order".)

The court takes judicial notice of its own docket and notes that the court's minute order dismissing the complaint for plaintiff's failure to appear for the case management conference on October 22, 2025, is not signed. (See the CMC Minutes/OSC, filed on Oct. 22, 2025.) A signed order made pursuant to Code of Civil Procedure section 581d does not otherwise appear in the court's docket or records.

The lack of a written order of dismissal signed by the court has two consequences. First, the motion for relief from dismissal is premature as there is no judgment yet to set aside. Second, in this matter, there is no final judgment so as to preclude the court from reconsidering its own orders, which is discussed below.

Here, the court set a case management conference for June 12, 2025. On May 30, 2025, the court issued a minute order continuing the case management conference from June 12, 2025 to October 22, 2025. (See the Minute Order re: Continuance of Case Management Conference from Chambers, filed on May 30, 2025 ("May 30, 2025 Minute Order").) Plaintiff failed to appear for the October 22, 2025 case management conference, and the court dismissed the action without prejudice for plaintiff's failure to appear. (See the Case Management Conference Minutes/Order to Show Cause, filed on October 22, 2025.)

As indicated above, plaintiff's counsel's supplemental declaration submits that the court's order continuing the case management conference from June 12, 2025 to October 22, 2025 was inadvertently served to an incorrect address that was not counsel's address of record in this case. (Stone Supp. Decl., ¶¶ 4-5 and Ex. A thereto.)

"In case of service by mail, the notice or other paper shall be . . . addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by mail; otherwise at that party's place of residence." (Code Civ. Proc., § 1013, subd. (a).)

The clerk's certificate of mailing accompanying the May 30, 2025 Minute Order re: Continuance of Case Management Conference from Chambers that continued the case management conference set on June 12, 2025 to October 22, 2025, indicates that the order was mailed to <u>1150 S. Robertson Blvd., Los Angeles, CA 90035.</u> (Stone Supp. Decl., at Ex. A.) The court judicially notices the fact that the only documents filed by plaintiff in this case prior to the May 30, 2025 order were the Civil Case Cover Sheet, Complaint, and Summons. Counsel's address listed on all three documents were as follows: <u>1122 S. La Cienega Blvd., Los Angeles, CA 90035.</u> Thus, the court's service of the May 30, 2025 Minute Order informing the parties of the continuance was defective, and undoubtedly, a substantial factor in plaintiff's non-appearance at the October 22, 2025 hearing. Accordingly, the court intends to set a hearing to reconsider the entry of the Case Management Conference Minutes/Order to Show Cause, filed on October 22, 2025 ("October 22, 2025 Order").

Therefore, the motion for relief is denied as premature. The court, on its own motion, sets hearing for reconsideration of the October 22, 2025 Order. (*Le Francois v. Goel* (2005) Cal.4th 1094, 1097, 1108 [prior to reconsidering its own orders, "the court must notify the parties that it may do so, solicit briefing and conduct a hearing"].)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: SMC on August 31, 2026 .
(Judge's initials) (Date)